

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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ELLEN GREEN, DONOVAN GREEN, TERELLE GREEN,
HERBIE GONZALEZ, HYSHAWN JACKSON,
TEMESHIA GUMBY, and MAYLENE SANCHEZ,

**SECOND AMENDED
COMPLAINT**

Plaintiffs,

14 CV 6048 (ENV) (CLP)

-against-

**JURY TRIAL
DEMANDED**

THE CITY OF NEW YORK,
DETECTIVE MICHAEL T. NOCERINO (TAX 937192),
POLICE OFFICER BENJAMIN SOTO (TAX 926154),
POLICE OFFICER MATTHEW CAHILL (TAX 929812),
DETECTIVE SLAWOMIR DZIUBEK (TAX 938417), and
DETECTIVE RICHARD COLANGELO (TAX 918863),

Defendants.
-----X

Plaintiffs, Ellen Green, Donovan Green, Terelle Green, Herbie Gonzalez, Hyshawn Jackson,
Temeshia Gumby, and Maylene Sanchez, by their attorneys, Reibman & Weiner, submit their
Second Amended Complaint, and allege as follows, upon information and belief:

PARTIES, VENUE, and JURISDICTION

1. At all times hereinafter mentioned, plaintiffs were adult residents of Kings
County, located within the City and State of New York.

2. At all relevant times hereinafter mentioned, defendant, City of New York
("New York City"), was and is a municipal corporation duly organized and existing under and by
virtue of the laws of the State of New York and acts by and through its agencies, employees and
agents, including, but not limited to, the New York City Police Department ("NYPD") and its
employees.

3. At all times hereinafter mentioned, defendant Michael T. Nocerino was a member of the NYPD, with the rank of Detective, employed, retained, trained and supervised by New York City, and is sued herein in his individual and official capacities. Upon information and belief, Detective Nocerino is currently assigned to the Grand Larceny Division of the Detectives Bureau.

4. At all times hereinafter mentioned, defendant Benjamin Soto was a member of the NYPD, with the rank of Police Officer, employed, retained, trained and supervised by New York City, and is sued herein in his individual and official capacities. Upon information and belief, defendant Soto is currently assigned to Police Service Area 3, Housing Bureau, of the NYPD.

5. At all times hereinafter mentioned, defendant Slawomir Dziubek was a member of the NYPD, with the rank of Detective, employed, retained, trained and supervised by New York City, and is sued herein in his individual and official capacities. Upon information and belief, defendant Dziubek is currently assigned to Emergency Services Unit Truck 8, 10 New Montrose Ave., Brooklyn, New York 11211.

6. At all times hereinafter mentioned, defendant Richard Colangelo was a member of the NYPD, with the rank of Detective, employed, retained, trained and supervised by New York City, and is sued herein in his individual and official capacities. Upon information and belief, defendant Colangelo is currently assigned to Emergency Services Unit Truck 6, 333 65th St., Brooklyn, New York 11220.

7. At all times hereinafter mentioned, defendant Matthew Cahill was a member of the NYPD, with the rank of Police Officer, employed, retained, trained and supervised by New York City, and is sued herein in his individual and official capacities. Upon information and belief,

defendant Cahill is currently assigned to Emergency Services Unit Truck 7, 1000 Sutter Ave., Brooklyn, New York 11211.

8. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

9. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Southern District of New York, where the plaintiffs and defendant City of New York reside.

10. That plaintiffs timely served a Notices of Claims on the municipal defendant and complied with all conditions precedent to commencing an action under state law.

11. At least thirty days have elapsed since service of plaintiffs' Notices of Claims and adjustment and payment thereof has been neglected or refused.

12. That the within action has been initiated within one year and ninety days of the accrual of plaintiffs' claims pursuant to New York State Law.

RELEVANT FACTS

13. On January 28, 2014 (the "date of the arrest"), a nine-person NYPD Tactical Entry team accompanied by other members of the NYPD, including the individual defendants, kicked in the door of Ellen Green's apartment at 155 Seigel Street, Apartment 1B, Brooklyn, New York 11206 (the "scene of the arrest" or "apartment"), seized everyone in the apartment, and handcuffed and arrested everyone, and ransacked the apartment.

14. Defendants and the other members of the NYPD were armed with ballistic shields, pistols, MP5 submachine guns, and an M4 rifle.

15. According to NYPD documents, Captain Matzinger was the overall supervisor and tactical plan ranking officer in charge of the raid of Ellen Green's apartment.

16. According to the Emergency Service Unit – ESD2 Report, defendants and other members of the NYPD “responded to [Ellen Green’s apartment] and did don heavy vests and helmets and along with heavy weapons did forcibly enter location for a search warrant. All persons inside location were taken into custody.”

17. Defendants and other members of the NYPD ransacked the entire two-bedroom apartment and damaged the apartment and other property belonging to plaintiffs.

18. On the date of the arrest, Ellen Green and her son Donovan Green resided at the apartment.

19. Prior to the raid and mass arrests, defendant Soto supplied an affidavit to the Criminal Court of New York to secure a search warrant for Ellen Green’s apartment. Based on Soto’s testimony, the Criminal Court issued a warrant stating “that there is probable cause for believing that certain property, namely: firearms, ammunition, documents concerning the ownership and recent occupation of the location, U.S. currency relating to the illegal trafficking of firearms; and any computer hardware, computer software, [and] cellular phones ... will be found inside 155 Seigel Street, Apartment 1B, Brooklyn, New York.”

20. Defendant Soto provided incorrect and wrong information to the Criminal Court resulting in the issuance of the search warrant for Ellen Green’s apartment.

21. No evidence of illegal trafficking of firearms was found inside the scene of the arrest.

22. To the contrary, according to NYPD documents, the only evidence found in the apartment were eight bullets belonging to a non-party, a gravity knife belonging to the same non-

party, and approximately 0.5 grams of marijuana (less than the size of a U.S. quarter) on top of Donovan Green's dresser.

23. The defendants were not invited into the premises nor was their entry consented to by any of the plaintiffs, or any other individual authorized to so consent.

24. The defendants, specifically defendant Soto, procured the subject warrant in false or otherwise misleading information.

25. On the date of the arrest, Ellen Green was a 45 year old woman who suffered from diabetes and struggled to walk due to partial toe amputations. Ellen Green was doing nothing wrong when the defendants and other members of the NYPD stormed her apartment, seized her by gunpoint, and falsely arrested her.

26. Defendants threw Ellen Green to the ground and at least one of defendants placed his knee directly on her neck. According to NYPD documents, defendant Cahill handcuffed Ellen Green.

27. The defendants, including Cahill, then dragged Ellen Green by her handcuffs from the rear bedroom.

28. As a result of defendants' excessive force, Ellen Green suffered bruising, lacerations, and a severe injury to her neck and back. Ellen Green lives with this severe injury and pain to this day as a result of defendants' excessive force.

29. According to NYPD documents, defendant Colangelo handcuffed and arrested Terelle Green.

30. Defendants took Terelle Green to the 90th Precinct, where he was held for several hours before being summarily released.

31. According to the arrest report for the voided arrest, defendant Nocerino was Terelle Green's arresting officer.

32. The arrest report incorrectly states that Terelle Green was "found in possession of marijuana." Per the same report, "[u]pon further investigation [Terelle Green] found not to be in possession of said marijuana."

33. According to NYPD documents, defendant Dziubek handcuffed and arrested Herbie Gonzalez.

34. Defendants took Herbie Gonzalez to the 90th Precinct, where he was held for several hours before being summarily released.

35. According to the arrest report for the voided arrest, defendant Nocerino was Herbie Gonzalez's arresting officer.

36. The arrest report incorrectly states that Herbie Gonzalez was "found in possession of marijuana." Per the same report, "[u]pon further investigation [Herbie Gonzalez] found not to be in possession of said marijuana."

37. According to NYPD documents, defendant Colangelo handcuffed and arrested Hyshawn Jackson.

38. Defendants took Hyshawn Jackson to the 90th Precinct, where he was held for several hours before being summarily released.

39. According to the arrest report for the voided arrest, defendant Nocerino was Hyshawn Jackson's arresting officer.

40. The arrest report incorrectly states that Hyshawn Jackson was “found in possession of marijuana.” Per the same report, “[u]pon further investigation [Hyshawn Jackson] found not to be in possession of said marijuana.”

41. According to NYPD documents, defendant Colangelo handcuffed and arrested Temeshia Gumby.

42. Defendants took Temeshia Gumby to the 90th Precinct, where she was held for several hours before being summarily released.

43. Plaintiffs are not in possession of the arrest report for the voided arrest of Temeshia Gumby.

44. Temeshia Gumby was subjected to excessive force by the defendants when they struck her while falsely arresting her. This force resulted in bruising on Temeshia Gumby’s body.

45. According to NYPD documents, defendant Colangelo handcuffed and arrested Maylene Sanchez.

46. According to the arrest report for the voided arrest, defendant Nocerino was Maylene Sanchez’s arresting officer.

47. The arrest report incorrectly states that Maylene Sanchez was “found in possession of marijuana.” Per the same report, “[u]pon further investigation [Maylene Sanchez] found not to be in possession of said marijuana.”

48. Maylene Sanchez was handcuffed excessively tightly while in custody. She complained several times to the defendants and asked them to loosen the handcuffs, but they refused.

49. As a result of the excessively tight handcuffing and other use of force, plaintiff, Maylene Sanchez sustained bruises and abrasions.

50. According to NYPD documents, defendant Colangelo handcuffed and arrested Donovan Green.

51. Defendants took Donovan Green to the 90th Precinct, where he was held for several hours. Donovan Green was transferred from the precinct to Kings County Central Booking where he was held for a number of hours before he was arraigned on a criminal complaint sworn by defendant Nocerino.

52. Donovan Green was then released from custody with a future court date. He was improperly prosecuted for several months for unlawful possession of marijuana before the charges against him were dismissed when he acceded to an adjournment in contemplation of dismissal.

53. In support of the criminal complaint, defendant Nocerino alleged that at the scene of the arrest “which was public, [Nocerino] observed [Donovan Green] in possession of a quantity of marijuana in that the informant recovered said marijuana from a room in the apartment the defendant was in, in plain view.”

54. The allegation that the three zip bags of marijuana found on Donovan Green’s dresser inside the apartment were “in a public place” was false, and defendant Nocerino knew the allegation to be false when he made it.

55. Specifically, N. Y. Penal Law § 240.00 defines “public place” as “a place to which the public or a substantial group of persons has access, and includes, but is not limited to, highways, transportation facilities, schools, places of amusement, parks, playgrounds, and hallways,

lobbies and other portions of apartment houses and hotels not constituting rooms or apartments designed for actual residence.”

56. The statute that Donovan Green was ultimately charged under, N.Y. Penal Law § 221.05, states that “[u]nlawful possession of marihuana is a violation punishable only by a fine of not more than one hundred dollars.” Donovan Green was held in custody for approximately 16.5 hours as a result of defendants’ arrest.

57. At no time did defendants have probable cause to seize, detain or arrest any of the plaintiffs, nor was it reasonable for the defendants to believe that such cause existed.

58. At no time did any of the defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the heretofore conduct engaged in by their fellow officers.

59. That at all times relevant herein, the defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York’s interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

60. Plaintiffs repeat the allegations contained in the foregoing paragraphs as though stated fully herein.

61. Defendants willfully and intentionally subjected plaintiffs to excessive force, and seized, searched, arrested and imprisoned plaintiffs without due cause, and without a reasonable basis to believe such cause existed.

62. Defendants willfully and intentionally subjected plaintiffs to excessive force by, amongst other things, arresting and/or detaining them without any probable cause, and by using

force on the plaintiffs in the manner described above, which was not necessary under the circumstances, and without a reasonable basis to believe that the use of such force was necessary.

63. By so doing, the individual defendants, individually and collectively, subjected the plaintiffs to false arrest and imprisonment, excessive force, and unlawful searches of person and property, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution

64. By reason thereof, the individual defendants have violated 42 U.S.C. § 1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, the loss of their constitutional rights, and unlawful incarceration.

SECOND CAUSE OF ACTION

65. Plaintiffs repeat the allegations contained in each of the foregoing paragraphs as though stated fully herein.

66. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

67. Defendant had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

68. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiffs' arrest.

69. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

70. The aforementioned customs, practices, procedures, and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Using excessive force on individuals, including but not limited to those who have already been handcuffed;
- b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- c. Discouraging police officers from reporting the corrupt or unlawful acts of other officers;
- d. Retaliating against officers who report police misconduct; and
- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

71. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.)
- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct., Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9696 (GBD) (THK) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.)
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (SD.N.Y.)
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207
- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.);
- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);
- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-I0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV-4430 (AKH) (S.D.N.Y.);
- r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);
- s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.);

72. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.

Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

73. Furthermore, more than half the time that the Civilian Complaint Review Board refers substantiated complaints against officers to the NYPD for disciplinary action, the NYPD either simply issues a verbal warning or drops the charges altogether.

74. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiffs' rights in particular.

75. By reason thereof, defendant has violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

THIRD CAUSE OF ACTION

76. Plaintiffs repeat the allegations contained in each of the foregoing paragraphs as though stated fully herein.

77. Plaintiffs were subjected to assault, battery, false arrest, excessive force, denial of due process and fair trial, through the defendants' use of fabricated evidence and the making of false statements.

78. At no time did defendants have any legal basis for seizing or arresting plaintiffs, subjecting them to excessive force, or commencing criminal process against them, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.

79. The individual and municipal defendants are therefore liable under New York law to plaintiffs for assault, battery, false arrest, excessive force, denial of due process and fair trial.

80. By reason thereof, defendants have caused plaintiffs to suffer emotional and physical injuries, mental anguish, the loss of their constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiffs hereby demand a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiffs demand judgment against defendants jointly and severally as follows:

- i. On the First Cause of Action, damages in a substantial sum of money against the individual defendants in an amount to be determined at trial;
- ii. On the First Cause of Action, punitive damages in a substantial sum of money against the individual defendants in an amount to be determined at trial;
- iii. On the Second Cause of Action, damages in a substantial sum of money against the City of New York in an amount to be determined at trial;
- iv. On the Third Cause of Action, damages in a substantial sum of money against the City of New York in an amount to be determined at trial;
- v. Statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, as well as disbursements, and costs of this action; and
- vi. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
December 29, 2015

/s/
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